

Lost Your Title Documents? Here's How Nigerian Property Owners Can Still Sell With Confidence

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It happens more often than most property owners would like to admit: a company or family decides to sell a property it has owned and occupied for years, only to discover that the original title documents can no longer be located. The good news is that losing a document is not the same as losing your rights. Nigerian land law provides a clear, if somewhat painstaking, route back to a clean, saleable title.

Losing the Document Does Not Extinguish the Right

Where a property was validly transferred to its current owner but the instrument evidencing that transfer has since been misplaced, the owner's underlying legal interest survives. What is missing is proof of it, not the right itself. The task, then, is procedural: reconstructing proof of title from the records held by the relevant State Lands Registry, rather than re-acquiring the property.

The Reconstruction Process

Where the owner no longer holds a certificate or file number for the property, the process typically begins with what practitioners call a blind search: a registry surveyor visits the property, and using the physical address and GPS coordinates, traces the property's survey plan and certificate/file number in the Registry's database. This search should also surface a record of prior registered transactions over the property.

Once that file reference is recovered, an application for a Certified True Copy (CTC) of the title document can be made. Registries generally require:

- A police report confirming that the loss of the documents has been reported, usually supported by an affidavit of loss and evidence of a newspaper publication;
- A sworn Affidavit of Loss, deposed to by a director or company secretary (for a corporate owner), setting out how the property was acquired and how the owner has exercised rights over it since acquisition; and
- A newspaper publication giving public notice of the loss, typically at least 21 days before the CTC application is filed.

On completion, the owner obtains a Certified True Copy of both the title document and the registered survey plan — sufficient, in most cases, to support a valid sale to a third party.

Where the Original Transfer Was Never Formalised

A different problem arises where a property changed hands informally, with no deed ever executed. In that scenario, the current occupier typically holds only an equitable interest, because oral or informal transfers of urban land (as opposed to land governed by customary tenure) do not, without more, pass legal title. If a search reveals that the previous owner remains the registered legal titleholder, the appropriate cure is for that previous owner to obtain the CTC described above and then execute a formal instrument — a Deed of Assignment or Deed of Gift, following Governor's Consent — vesting title in the current occupier.

Where the previous owner is unwilling to cooperate, long, undisturbed possession and open acts of ownership can, in appropriate cases, support an action compelling execution of the necessary documents by way of an order of specific performance, though each case turns on its particular facts.

The Practical Takeaway

A missing title document is an administrative obstacle, not a legal dead end. With a methodical registry search, the right supporting affidavits, and (where necessary) a formal instrument of transfer, ownership built up over years of occupation and payment of applicable charges can be converted back into a document a buyer's bank or solicitor will accept without hesitation.

A note on currency of the law

The core framework discussed here — the Land Use Act 1978, the Lagos State Land Registration Law 2015, and Lands Registry practice on lost title documents (blind search, police report, affidavit of loss, newspaper publication, and CTC application) — remains unchanged as at 2026.

One practical development is worth flagging: the Lagos State Lands Bureau has continued to expand its Electronic Document Management System and now offers same-day e-search facilities for certain records, which can shorten parts of this process compared to a few years ago. The underlying documentary requirements, however, are the same.

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